

****December 15, 2023****

****A New Fine - Individual Operator****

The National Authority for the Supervision of Personal Data Processing completed an investigation in November 2023 concerning an individual operator and found a violation of the provisions of Article 58 paragraph (1) letters a) and e) of Regulation (EU) 2016/679.

The operator was sanctioned with an administrative fine amounting to 993.84 lei, equivalent to 200 euros.

During the investigation conducted following a complaint, it was established that the sanctioned operator (individual) did not comply with a corrective measure imposed by the Authority through a previously issued report, despite the operator's obligation to allow the Authority access to personal data and all necessary information for the fulfillment of our institution's control tasks.

The operator's action constitutes the contravention provided for in Article 12 paragraph (1) of Law no. 190/2018, in relation to the provisions of Article 83 paragraph (5) letter e) of Regulation (EU) 2016/679, according to which administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, up to 4% of the total annual worldwide turnover for the preceding financial year may be applied, taking into account the highest value for "e) non-compliance with an order or a temporary or definitive limitation on processing, or the suspension of data flows, issued by the supervisory authority under Article 58 paragraph (2), or failure to grant access, violating Article 58 paragraph (1)."

****Legal and Communication Department****

****N.A.S.P.D.C.P.****